

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nicole Stern	Team: Squad #05	CCRB Case #: 202404889	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Tuesday, 05/14/2024 8:22 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/14/2025	Precinct: 67		
Date/Time CV Reported Thu, 05/16/2024 11:03 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 05/16/2024 11:03 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Gregory Markov	01223	935252	067 PCT
2. LT Joshua Gregory	00000	949062	067 PCT
3. PO Mina Gergis	00408	956671	067 PCT
4. PO Christine Roman	18956	959153	067 PCT
5. PO Rene Duran	07546	948923	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Johnny Lau	10650	940362	067 PCT
2. PO Mohamad Elhabahbeh	27323	974833	067 PCT
3. SGT Rajesh Kohli	03694	955019	067 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Rene Duran	Abuse: Police Officer Rene Duran entered § 87(2)(b) in Brooklyn.	A . Unfounded
B . PO Rene Duran	Force: Police Officer Rene Duran used physical force against § 87(2)(b)	B . Unfounded
C . PO Rene Duran	Force: Police Officer Rene Duran used physical force against § 87(2)(b)	C . Within NYPD Guidelines
D . PO Mina Gergis	Force: Police Officer Mina Gergis used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . PO Gregory Markov	Force: Police Officer Gregory Markov used physical force against § 87(2)(b)	E . Miscellaneous - Subject Retired
F . PO Christine Roman	Force: Police Officer Christine Roman used physical force against § 87(2)(b)	F . Within NYPD Guidelines
G . LT Joshua Gregory	Abuse: Lieutenant Joshua Gregory threatened to arrest § 87(2)(b)	G . Within NYPD Guidelines
H . PO Mina Gergis	Force: Sergeant Mina Gergis tightly handcuffed § 87(2)(b)	H . Unfounded
I . PO Rene Duran	Force: Police Officer Rene Duran used physical force against § 87(2)(b)	I . Substantiated
J . PO Gregory Markov	Force: Police Officer Gregory Markov used physical force against § 87(2)(b)	J . Miscellaneous - Subject Retired
K . PO Gregory Markov	Discourtesy: Police Officer Gregory Markov spoke discourteously to § 87(2)(b)	K . Miscellaneous - Subject Retired

Officer(s)	Allegation	Inv. Div. Recommendation
L . PO Gregory Markov	Off. Language: Police Officer Gregory Markov made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	L . Miscellaneous - Subject Retired
M . PO Gregory Markov	Force: Police Officer Gregory Markov used physical force against § 87(2)(b)	M . Miscellaneous - Subject Retired
N . PO Rene Duran	Force: Police Officer Rene Duran tightly handcuffed § 87(2)(b)	N . Unfounded

Case Summary

On May 16, 2024, § 87(2)(b) filed this complaint on the CCRB's website, on behalf of himself and his girlfriend, § 87(2)(b). On May 30, 2024, the complaint was closed at § 87(2)(b) request due to his ongoing criminal case resulting from the incident. The case was reopened at § 87(2)(b) request on December 5, 2024.

On May 14, 2024, at approximately 8:22 a.m., § 87(2)(b) was in his apartment on the § 87(2)(b) floor of § 87(2)(b) in Brooklyn when he saw a marked police car stop and park nearby. Over the next few minutes, Lt. Joshua Gregory, PO Mina Gergis, PO Christine Roman, PO Rene Duran, and PO Gregory Markov of the 67th Precinct arrived and spoke to § 87(2)(b) on his porch and in the vestibule of his building. Officers eventually learned that § 87(2)(b) was wanted for previously assaulting his upstairs neighbor. PO Duran allegedly entered § 87(2)(b) apartment (**Allegation A: Abuse of Authority, unfounded**). PO Duran allegedly kicked § 87(2)(b) in the knee (**Allegation B: Force, unfounded**). PO Duran, PO Gergis, and PO Markov grappled with § 87(2)(b) while handcuffing him (**Allegations C-D: Force, within NYPD guidelines; Allegation E: Force, miscellaneous – subject retired**). PO Roman pushed § 87(2)(b) (**Allegation F: Force, within NYPD guidelines**). Lt. Gregory threatened to arrest § 87(2)(b) (**Allegation G: Abuse of Authority, within NYPD guidelines**). PO Gergis allegedly tightened § 87(2)(b) handcuffs (**Allegation H: Force, unfounded**). PO Duran and PO Markov dragged § 87(2)(b) down the porch stairs (**Allegation I: Force, substantiated; Allegation J: Force, miscellaneous – subject retired**). PO Markov told § 87(2)(b) to “stop being a girl” (**Allegation K: Discourtesy, miscellaneous – subject retired; Allegation L: Offensive Language, miscellaneous – subject retired**). PO Markov allegedly grabbed the chain of § 87(2)(b) handcuffs and yanked his arms up and down (**Allegation M: Force, miscellaneous – subject retired**). PO Duran allegedly tightened § 87(2)(b) handcuffs again (**Allegation N: Force, unfounded**). § 87(2)(b) was arrested for assault in the third degree and resisting arrest (BR 35).

The investigation obtained BWC footage for this incident (BR 01-11, summarized in BR 12) and CCTV footage from § 87(2)(b) (BR 13-22, summarized in BR 23).

PO Gergis has since been promoted to sergeant and reassigned to the 122nd Precinct. PO Markov retired from the NYPD as of September 1, 2024 (BR 36).

IAB Investigative Unit 32 is conducting a concurrent investigation regarding this incident. As of February 19, 2025, this case is still open (BR 40).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Rene Duran entered § 87(2)(b) in Brooklyn.

Allegation (B) Force: Police Officer Rene Duran used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer Rene Duran used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Mina Gergis used physical force against § 87(2)(b)

Allegation (E) Force: Police Officer Gregory Markov used physical force against § 87(2)(b)

Allegation (F) Force: Police Officer Christine Roman used physical force against § 87(2)(b)

Allegation (G) Abuse of Authority: Lieutenant Joshua Gregory threatened to arrest § 87(2)(b)

Allegation (H) Force: Police Officer Mina Gergis tightly handcuffed § 87(2)(b)

§ 87(2)(b) stated (BR 24) that he told § 87(2)(b) to turn on their CCTV cameras and walked into his building's small vestibule when he saw the officers park nearby. PO Gergis and Lt. Gregory were already in the vestibule when § 87(2)(b) opened his apartment door. § 87(2)(b) calmly explained his ongoing problems with his landlord and upstairs neighbor for a few minutes before Lt. Gregory went upstairs to speak to the landlord. § 87(2)(b) and PO Gergis spoke on the porch, and four additional officers arrived. § 87(2)(b) began to feel crowded by the officers so he went into his apartment to get § 87(2)(b). By this point none of the officers had explained why they were there. § 87(2)(b) stood just inside their apartment, but as § 87(2)(b) started to close the door behind him, Lt. Gregory said something from upstairs. PO Duran stepped inside § 87(2)(b) apartment, kicked § 87(2)(b) left knee, and pulled § 87(2)(b) into the vestibule. Multiple officers started handcuffing him forcefully even though he was not resisting. § 87(2)(b) refused to provide additional details about this portion of the incident and the force officers allegedly used against him, despite being questioned about it. When he looked up, he saw PO Roman pushing and shoving § 87(2)(b) who was standing near the apartment door. PO Duran held § 87(2)(b) against the wall while he handcuffed § 87(2)(b). After securing the handcuffs, PO Duran re-tightened them further.

§ 87(2)(b) account was somewhat different from § 87(2)(b) (BR 25). She recounted that she stayed in the apartment for the beginning of the incident and eventually opened the apartment door while § 87(2)(b) was in the vestibule. The officers eventually mentioned that there was an open warrant for § 87(2)(b) but they did not explain further. § 87(2)(b) exited the apartment into the vestibule, leaving the apartment door ajar behind her. When Lt. Gregory called down something to the other officers and they started handcuffing § 87(2)(b) he was already in the vestibule. The officers did not enter the apartment to pull him out. While the officers were handcuffing him against a wall, § 87(2)(b) felt two officers push her against a radiator next to her door. § 87(2)(b) felt approximately four to five strong pushes against her chest, from a combination of the officers' hands, elbows, and arms. The pushes were forceful enough that § 87(2)(b) felt pain in her chest. The force pushed § 87(2)(b) so that her back was pressed against the radiator, hitting the lower half of her back, which resulted in stiffness. § 87(2)(b) tried to hand some of his belongings to § 87(2)(b) while the officers were handcuffing him. An officer told her to move away from § 87(2)(b) and threatened to arrest her if she did not comply, so § 87(2)(b) stepped back inside her apartment.

911 documentation shows that an anonymous man called to report that an irate man living on the § 87(2)(b) floor of § 87(2)(b) building had a gun (BR 39). When the 911 dispatcher dialed the caller again a few minutes later, a man answered, claimed that he never requested a police response, and hung up. The TRI report (BR 29) notes that officers responded to this report of a man with a gun and found § 87(2)(b) who behaved erratically and described events in an incoherent manner. The officers were unable to determine if § 87(2)(b) or someone else placed the 911 call. Officers spoke to § 87(2)(b) upstairs neighbor who stated § 87(2)(b) was being investigated for assaulting him. Officers searched in the database of open crime reports and confirmed that there was such a report which provided probable cause to arrest § 87(2)(b). § 87(2)(b) resisted being handcuffed by tensing his arms, pulling them into his body, and dropping his weight.

PO Gergis's BWC footage (BR 01, at 05:10) confirms that officers began handcuffing § 87(2)(b) in the vestibule while his apartment door was closed. No officer entered the apartment to pull him out. PO Duran moves to start handcuffing him and comes between him and the closed apartment door. § 87(2)(b) opens the door as PO Duran and PO Gergis grapple with § 87(2)(b) and § 87(2)(b) attempts to pass his phone and wallet to § 87(2)(b). PO Duran walks § 87(2)(b) to the opposite wall and does not appear to kick his knee. PO Gergis and PO Duran attempt to grab § 87(2)(b) hands but he pulls them into his chest and twists his body. § 87(2)(b) sinks down to a

seated position on the floor of his own volition, before curling into a fetal position as the officers continue trying to access his hands. At the same time, § 87(2)(b) has exited the apartment holding a lit cigarette, and she stands within inches of the officers who are grappling with § 87(2)(b). PO Roman grabs § 87(2)(b) wrist and repeatedly tells her to back up. § 87(2)(b) is not near the radiator, and PO Roman merely moves her hand with the lit cigarette away from the officers handcuffing § 87(2)(b). At 05:50, § 87(2)(b) is rolling between his side and his back, pulling both his arms and knees into his chest. PO Gergis holds his leg while PO Duran and PO Markov try to grab his wrists. At 05:55, PO Gergis puts a hand out to touch § 87(2)(b) arm, just as § 87(2)(b) continues trying to move closer to § 87(2)(b) and to pull her arm out of PO Roman's grasp. PO Roman holds her forearm in front of § 87(2)(b) chest to block her from moving forward. Lt. Gregory tells her, "Ma'am, if you don't step back inside you are going to be arrested for OGA." PO Roman just keeps her forearm against § 87(2)(b) shoulder to stop her from coming into the vestibule, and she removes it by 06:30.

PO Duran's BWC footage (BR 05, at 02:55) provides an alternate view of the arrest. At 03:35, PO Duran holds § 87(2)(b) wrist with one hand and attempts to handcuff it but § 87(2)(b) pulls his arm away, kicks his legs into the air, and rolls from his side onto his back. At 04:00, PO Duran and PO Markov secure the handcuffs on § 87(2)(b). Throughout the arrest, the officers merely hold § 87(2)(b) to overcome his resistance and grab his arms to handcuff them. No officer readjusts or re-tightens the handcuffs once § 87(2)(b) is in custody.

In his CCRB interview, PO Duran stated (BR 26) that when he arrived, § 87(2)(b) was not cooperating with officers' questions, yelling, waving his arms around, and moving away from officers. PO Lau, who was upstairs with Lt. Gregory, signaled that they had gathered enough information to arrest § 87(2)(b). PO Duran told § 87(2)(b) to put his hands behind his back, but he resisted by pulling his arms to his chest, refusing to give his hands to the officers, moving into a fetal position, and screaming loudly. § 87(2)(b) apartment door was ajar, but the officers blocked him from trying to go inside. PO Duran did not enter § 87(2)(b) apartment. PO Duran did not recall making physical contact with any part of § 87(2)(b) body other than his hands and arms. PO Duran denied kicking § 87(2)(b) knee.

It was not necessary to interview additional officers to reach dispositions for these allegations.

According to NYPD Patrol Guide Procedure 221-01, force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. If the force used is unreasonable under the circumstances, it will be deemed excessive and in violation of Department policy. In determining whether the use of force is reasonable, members of the service should consider the following:

- a. The nature and severity of the crime/circumstances
- b. Actions taken by the subject
- c. Duration of the action
- d. Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders
- e. Whether the subject is actively resisting custody
- f. Whether the subject is attempting to evade arrest by flight
- g. Number of subjects in comparison to the number of MOS
- h. Size, age, and condition of the subject in comparison to the MOS
- i. Subject's violent history, if known
- j. Presence of hostile crowd or agitators

k. Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence (BR 27).

NY CLS Penal Law § 195.05 (BR 28) states that an individual is guilty of obstructing governmental administration in the second degree when he intentionally obstructs, impairs, or perverts the administration of law or other governmental function, or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force, or interference.

The BWC footage clearly captures PO Duran's movements throughout the incident, and he does not enter § 87(2)(b) apartment at any point. § 87(2)(g) PO Duran does not make any motion to indicate he is kicking § 87(2)(b) knee § 87(2)(g) It is therefore recommended that **Allegations A-B** be closed as **unfounded**.

§ 87(2)(g) § 87(2)(b) was actively resisting arrest by falling to the ground, pulling his arms to his chest, and rolling on the floor. § 87(2)(g)

It is therefore recommended that **Allegations C-D** be closed as **within NYPD Guidelines**. § 87(2)(g) it is recommended that **Allegation E** be closed as **miscellaneous – subject retired**.

§ 87(2)(g)

It is therefore recommended that **Allegations F-G** be closed as **within NYPD guidelines**.

BWC footage captures the entire time officers are handcuffing § 87(2)(b) PO Gergis was not involved in handcuffing § 87(2)(b) and none of the officers re-tightened § 87(2)(b) handcuffs once they were secured. It is therefore recommended that **Allegation H** be closed as **unfounded**.

Allegation (I) Force: Police Officer Rene Duran used physical force against § 87(2)(b)

Allegation (J) Force: Police Officer Gregory Markov used physical force against § 87(2)(b)

§ 87(2)(b) stated that two officers stood him up and brought him to the top of the stairs leading from the porch to the sidewalk. Before § 87(2)(b) could steady himself, one of the officers took a step forward and pulled § 87(2)(b) with him. At the same time, the second officer pushed § 87(2)(b) from behind. The two officers dragged § 87(2)(b) down the stairs. His legs hit the stairs as the officers pulled him, which caused his knees and ankles to swell. He also had bruising and bleeding resulting from the handcuffs on his wrists. EMS personnel later came to the stationhouse, but he declined medical attention when he learned that it would lengthen his time in custody. He called 911 from his residence four days later. EMS personnel provided some type of treatment to him, though he could not recall what, and he did not go to the hospital with them. He went to a hospital on his own some number of days later. § 87(2)(b) provided photographs of EMS personnel in his residence appearing to tape an icepack to his left ankle (BR 37).

A Medical Treatment of Prisoner Report documents that EMS responded to the stationhouse in relation to § 87(2)(b) being considered an emotionally disturbed person and having “past psychological issues,” and that § 87(2)(b) declined medical attention (BR 38). The Prehospital Care Report Summary notes that § 87(2)(b) was uncooperative with the ambulance personnel, despite complaining that officers tackled him, further aggravated a preexisting knee issue, and caused him a concussion. He refused to allow them to evaluate him (see Privileged Records).

The Prehospital Care Report Summary for the EMS visit to § 87(2)(b) residence § 87(2)(b) after the incident noted that he complained broadly about a variety of issues stemming from the incident: soreness in his neck and left foot, a clicking sound in his left elbow, a “flabby” left calf, and a severe headache. The EMTs noted abrasions on his left leg and his wrists. § 87(2)(b) unsuccessfully attempted to get the EMTs to give him medication, and he refused to go to the hospital. The EMTs put icepacks on his left knee and left foot. The investigation could find no record of § 87(2)(b) obtaining treatment at a hospital shortly afterward; § 87(2)(b) when he complained of pain in his neck, chronic pain of both ankles, and wrist pain. He said that he thought his ankle swelling resulted from him being kicked out of his house and running out of his medication, though he also mentioned the incident with police. § 87(2)(b), § 87(2)(a) – PHL 18(6) § 87(2)(b) complaining of occasional pain and swelling in his knees, and pain and limited movement in his left leg. § 87(2)(b) § 87(2)(b)

§ 87(2)(b) statement was largely consistent with § 87(2)(b) however, she stated that § 87(2)(b) suddenly dropped onto the ground at the top of the stairs and then the officers pulled him down the stairs. She did not know what caused § 87(2)(b) to fall.

The TRI report (BR 29) notes that § 87(2)(b) continued to twist his arms and body and behave disorderly while being escorted to a vehicle, including dropping his weight in order to fall down the stairs. He was offered medical attention multiple times at the stationhouse after continuing to behave irrationally. § 87(2)(b) did not mention any injuries, only that his handcuffs were too tight. EMS responded and § 87(2)(b) refused medical attention.

PO Lau’s BWC footage (BR 03, at 06:25) shows PO Duran and PO Markov attempting to escort a handcuffed § 87(2)(b) off the porch. Each officer has an arm looped through one of § 87(2)(b) arms, with PO Markov on his left and PO Duran on his right. PO Gergis stands immediately behind them on the porch. It is apparent that § 87(2)(b) is trying to prevent the officers from making him walk to the edge of the staircase, and he swings his legs behind him with each step. PO Markov and PO Duran begin walking down the steps while maintaining their hold on § 87(2)(b) arms, and he falls to the ground such that his lower legs are lying on the porch while they hold his upper body aloft above the stairs. It is apparent that the officers were not prepared for him to fall, and they momentarily steady themselves before continuing to walk down the stairs, holding his upper body up by his arms while his legs drag along the steps. The officers stop once they have pulled § 87(2)(b) entirely onto the sidewalk, and he stands up before they continue to escort him away.

PO Duran stated that § 87(2)(b) was still resisting while at the top of the staircase. He intentionally went limp and dropped to the ground. PO Duran denied that either he or PO Markov pulled § 87(2)(b) down the stairs. PO Duran and PO Markov lifted § 87(2)(b) so that he did not

hit his head and he eventually stood up. PO Duran could not recall if § 87(2)(b) was on the staircase or the pavement when he stood up. Upon reviewing PO Lau's BWC footage, PO Duran stated he walked down the staircase while § 87(2)(b) was lying on the ground because § 87(2)(b) was refusing to get up and they needed to move him into the police car. PO Duran tried to get § 87(2)(b) to stand up while they were walking down the stairs, but he did not comply and remained limp. PO Duran was not able to stop in the middle of the staircase to give § 87(2)(b) a chance to stand and walk.

As noted above, PO Markov retired from the NYPD during the time that this case was temporarily closed, and thus the investigation was not able to interview him.

It was not necessary to interview additional officers for these allegations.

According to NYPD Patrol Guide Procedure 221-01, force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. If the force used is unreasonable under the circumstances, it will be deemed excessive and in violation of Department Policy. In determining whether the use of force is reasonable, members of the service should consider the following:

- a. The nature and severity of the crime/circumstances
- b. Actions taken by the subject
- c. Duration of the action
- d. Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders
- e. Whether the subject is actively resisting custody
- f. Whether the subject is attempting to evade arrest by flight
- g. Number of subjects in comparison to the number of MOS
- h. Size, age, and condition of the subject in comparison to the MOS
- i. Subject's violent history, if known
- j. Presence of hostile crowd or agitators
- k. Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence (BR 27).

§ 87(2)(g)

§ 87(2)(b) was fully restrained in handcuffs and there were numerous additional officers present to assist if necessary, § 87(2)(g)

Dragging him down the stairs in the manner depicted in the BWC footage § 87(2)(g)

it is recommended that **Allegation J** be closed as **miscellaneous – subject retired**.

Allegation (K) Discourtesy: Police Officer Gregory Markov spoke discourteously to § 87(2)(b)

Allegation (L) Offensive Language: Police Officer Gregory Markov made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

Allegation (M) Force: Police Officer Gregory Markov used physical force against § 87(2)(b)

§ 87(2)(b)

Allegation (N) Force: Police Officer Rene Duran tightly handcuffed § 87(2)(b)

§ 87(2)(b) stated that as the officers were walking him to the car, PO Markov grabbed the chain of the handcuffs, lifted his arms up behind him, and then whipped his arms down “like he was on a horse with the reins,” which caused his arms to feel whiplash. PO Duran held § 87(2)(b) elbow while they walked to the car. § 87(2)(b) told him that the handcuffs were too tight and were causing him pain. After he said this, PO Duran tightened the handcuffs further, causing § 87(2)(b) wrists to swell, bleed, and bruise.

PO Markov’s BWC footage (BR 04, at 06:35) shows PO Markov telling § 87(2)(b) “Stand up. Stop being a girl. Stop being a baby.” The officers walk § 87(2)(b) to the car. PO Markov is holding § 87(2)(b) by the handcuff chain, keeping § 87(2)(b) arms behind him with his elbows straight. PO Duran holds onto one of § 87(2)(b) elbows. At no point does PO Duran interact with § 87(2)(b) handcuffs before he is lodged in the car. At no point does PO Markov “whip” his arms.

PO Duran denied tightening § 87(2)(b) handcuffs at any point. He recalled § 87(2)(b) complaining that his handcuffs were too tight while PO Duran was driving him to the stationhouse, but since both officers were in the front seat they were not able to adjust his handcuffs. § 87(2)(b) did not complain about the handcuffs prior to this point.

§ 87(2)(g) is recommended that **Allegations K-M** be closed as **miscellaneous – subject retired**. BWC footage clearly captures PO Duran throughout the time § 87(2)(b) § 87(2)(g) and it does not show PO Duran appearing to adjust or touch the cuffs. It is therefore recommended that **Allegation N** be closed as **unfounded**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 30).
- § 87(2)(b)
§ 87(2)(b)
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■ § 87(2)(b)
■ § 87(2)(b)
■ § 87(2)(b)
- Lt. Gregory has been a member of the NYPD for 14 years and has been a subject in two CCRB complaints and two allegations, neither of which was substantiated. § 87(2)(g)
- PO Gergis has been a member of the NYPD for 10 years and has been a subject in one CCRB complaints and one allegation, which was not substantiated. § 87(2)(g)
- PO Roman has been a member of the NYPD for nine years and has been a subject in two CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)
- PO Duran has been a member of the NYPD for 14 years and has been a subject in two CCRB complaints and two allegations, neither of which was substantiated. § 87(2)(g)
- PO Markov was a member of the NYPD for 19 years and was a subject in 12 CCRB complaints and 30 allegations, of which two were substantiated:

- **202008096** involved a substantiated frisk allegation against PO Markov. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
- **202100118** involved a substantiated discourtesy allegation against PO Markov. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming swollen ankles, injured wrists, neck, and knees, and a bruised back and seeking an unknown amount of compensation as redress (BR 32). There is no 50H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 5

Investigator:	<u>Nicole Stern</u>	<u>Inv. Stern</u>	<u>04/03/2025</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Daniel Giansante</u>	<u>IM Daniel Giansante</u>	<u>April 3, 2025</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date